Revision Date:
August 1, 2024

Background:
Deprivation of parental support or care is a separate and specific eligibility factor for CalWORKs. A child's deprivation is based on the status of their natural or adoptive parent(s). There is no CalWORKs eligibility unless deprivation requirements are met.

Purpose:
The section outlines the CalWORKs policies on deprivation due to absence. The purpose of this revision is for sunset review and reformatting to current standards. There is no policy change. This revision renumbered and combined CalWORKs Program Guide (CPG) sections 41-400.F, 41-400.G, and 41-400.H into section 41-400.E. CPG sections 41-100.F, 41-400.G, and 41-400.H become obsolete with the issuance of this material.

Policy:
Deprivation due to absence exists when the natural or adoptive parent continues to be physically absent from the child's home. In addition, the nature of the absence results in an interruption or termination of the parent's functioning as a provider of maintenance, physical care, or guidance for the child. The reason for the absence or the length of time that the parent has been absent is not a determining factor, instead the deciding aspect is if the absence precludes the parent from planning for the present support and care of the child.

Continued Absence
The continued absence of the parent from the home as defined above includes but is not limited to the following circumstances:

- The parents are not married to each other and have not maintained a home together.
- The absent parent:
  - Is not legally able to return to the home because of confinement in a penal or correctional institution.
  - Has been deported.
  - Has voluntarily left the country because of the threat of, or the knowledge that they are subject to deportation.
- A parent has filed for or retained legal counsel for the purpose of filing an action for dissolution of marriage, an annulment, or for legal separation.
- The court has issued an injunction forbidding the parent to visit the custodial parent or child.
- The remaining parent has presented a sign, written statement that the other parent has left the family and that the nature of the absence constitutes continued absence of the parent. Refer to the *Evidence of Continued Absence* section of this material for more information.
- One or both parents are physically out of the home and their whereabouts are unknown.

Deprivation due to continued absence exists as of the date that one of the mentioned circumstances occurs.

A determination of continued absence must be determined even under the following circumstances:

- When the parent remains in contact with the child through regular or frequent visits.
- When the child lives with each parent for alternating periods of time.
- When a parent who is a convicted offender is permitted to live at home while serving a court-imposed sentence by performing unpaid public work or unpaid community service during the workday.

Note: If the customer is in a jail program in which they live at the home and work at a regular job during the week and only spends weekends in jail, the absence must be considered temporary and is not considered continued. Therefore, there is no CalWORKs eligibility unless other deprivation exists.

When questions arise regarding continued absence of a parent, various factors may be considered such as, but not limited to:

- Does the parent provide day-to-day care and control of the child?
- Do the parents maintain separate homes?
- Do the parents have separate mailing addresses?
- Do the parents maintain their money separately?
- Do the parents have access to each other's income or resources?
- Is the parent absent due to hospitalization, attendance at school, visiting, vacationing, or trips made in connection with current or prospective employment?

Temporary Absence

Continued absence does not exist when:

- A parent is physically absent from the home on a temporary basis such as visits, trips or temporary assignments undertaken in connection with current or prospective employment.
- A parent is absent for the sole reason of performing active duty in the uniformed services of the United States such as:
  - Army
  - Navy
  - Airforce
  - Marine Corps
  - Coast Guard
  - National Oceanographic and Atmospheric Administration
  - Public Health Services of the United States

Note: When the customer provides appropriate evidence to establish that continued absence would exist irrespective of the parent's performance of active duty in the uniformed services of the United States, continued absence must be considered to exist.

Evidence of Continued Absence

The customer's written statement on the application and the child support forms are considered sufficient evidence of the other parent's continued absence unless conflicting information is known to the county or reasonable doubt indicates that the deprivation due to absence is questionable.

When the information presented is questionable, staff are required to further review the case to ensure deprivation due to absence exist. Examples of such conditions that may raise concern include but are not limited to the following:

- Verbal or written information provided by the customer is contradictory, incomplete, or not consistent.
- Information provided by the customer or others, including information in the previous case record, leads to a reasonable doubt that continued absence exists.
- Past history of non-compliance with the Local Child Support Agency (LCSA).

If conflicting information is known to the county or reasonable doubt indicates further evidence is necessary, the written statement of the customer must be supported by at least one of the following:

- Additional evidence demonstrating "continued absence" exists, which may include written statements of the absent parent or other persons with prior knowledge of the family relationship.
- Evidence of the actions of the customer or the absent parent that clearly indicate not only the physical absence of the other parent but also the continued nature of the absence.

If it is suspected that the absent parent is living in the home or deprivation due to absence is questionable, staff must confer with their supervisor to review the case circumstances, and when applicable, the case is to be referred to the Bureau of Public Assistance Investigations (BPAI). Refer to CPG 20-000.A – *Integrity/Fraud Detection and Prevention* and the associated CalWORKs Processing Guide 20-000.A1 for more information.

Requirements to Cooperate with Child Support Regulations

The child support cooperation requirement must be followed whenever the assistance unit (AU) has an absent parent. Refer to CPG 43-200.A – *Child Support/Referrals and Assignment of Rights and Cooperation Requirements* for more information.

References:

Manual of Policies and Procedures (MPP) 41-450

Sunset Date:

This policy will be reviewed for continuance by August 31, 2027.

Approval for Release:

8-6-24

Rick Wanne, Director
Self-Sufficiency Services